

Section L – Instructions to Offerors (ITO) for Firm Fixed Price Subcontract**1. GENERAL INFORMATION**

Exhibit L – Instructions to Offerors for Firm Fixed Price Subcontract provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The Offeror's proposal must include all data and information requested by the ITO and must be submitted in accordance with these instructions. The proposal shall be compliant with the requirements as stated in the Technical Evaluation Checklist. Non-conformance with the instructions provided in this ITO may result in an unfavorable proposal evaluation.

Proposals must be valid for ninety (90) days from the proposal due date. The Offeror shall make a clear statement in its proposal cover letter utilizing the following language, "The undersigned agrees that this offer is valid for ninety (90) days and shall furnish any or all items upon which prices are offered at the price set opposite each item and that will remain valid for one year from the initial award, delivered at the designated point(s), within the time specified in the schedule."

Proposals are due no later than June 4, 2026, at 5PM PST and shall be addressed and e-mailed to the Giang Ngo at giangn@slac.stanford.edu.

Proposals shall be submitted on the forms furnished or copies thereof and must be manually or electronically signed. If erasures or other changes appear on the forms; the person signing the proposal must initial each erasure or change.

Point of Contact: The LCLS-II-HE PS, Giang Ngo, is the sole point of contact for this acquisition. Address any questions or concerns you may have to the Sr. Subcontracts Administrator at e-mail: giangn@slac.stanford.edu. All exchanges of source selection information between SLAC and Offerors will be controlled by the Sr. Subcontracts Administrator.

Cost/Price Reasonableness and Realism: Unrealistically low or high proposed costs or prices, initially or subsequently, may be grounds for eliminating a proposal from consideration either on the basis that the Offeror does not understand the requirements, or has made an unrealistic offer. Offers should be sufficiently detailed to demonstrate their reasonableness. The burden of proof for credibility of proposed costs/prices rests with the Offeror. The Offeror's Cost/Price proposal consists of the firm fixed price to deliver the products required as set forth in the solicitation and must be prepared in a manner that is current, accurate, and responsive to the RFP.

SLAC intends to award without discussions with respective Offerors. SLAC, however, reserves the right to conduct discussions if deemed in its best interest. SLAC intends to award without discussions with respective Offerors. SLAC, however, reserves the right to conduct discussions if deemed in its best interest.

Marking of Proprietary/Confidential Information. Offerors shall properly mark and identify with a restrictive legend or information markings on pages of the proposal that contain proprietary/confidential information.

For Offeror to be eligible for a subcontract award with SLAC, Offeror shall be registered with the System for Award Management (SAM), the Official U.S. Government system that consolidated the capabilities of CCR/FedReg, ORCA, and EPLS. There is NO fee to register for this site. Entities may register at no cost directly at the SAM website:

https://sam.gov/content/home?api_key=ROEXk2SBBROUbVQ4L38wSJSGEvZ3oWtLxva_9h0zV

Please make certain your business proposal includes the following completed documents as required in this Section L – “Instructions to Offerors (ITO)” noted below:

1. Section A- Subcontract Award Form and acknowledgement of any Solicitation amendments.
2. Section B - Supplies or Services and Prices.
3. Section H - Key Personnel Clause.
4. Section K - Representations and Certifications and Buy American Act Certification. Complete and return with proposal.
5. Section L- Attachment 1 “Offeror’s Request for Clarifications.” Complete and e-mail this form to the Sr. Subcontract Administrator, for any questions/clarifications regarding this proposal prior to the submission deadline of **May 21, 2026**.
6. Section L- Attachment 2 - “Offeror’s Technical and Business Checklist.” Completed and returned with proposal.

Also note that the following requirements apply to this procurement and any resultant Subcontract Order:

- E-Verify as required by FAR 52.222-54, “Employment Eligibility Verification (July 2012) applies to this procurement.
- For Offeror to be eligible for a subcontract award with SLAC, Offeror shall be registered with the System for Award Management (SAM), the Official U.S. Government system that consolidated the capabilities of CCR/FedReg, ORCA, and EPLS. There is NO fee to register for this site. Entities may register at no cost directly at the SAM website:
<https://sam.gov/content/home>

SLAC will not be liable for any expense incurred in preparing any supplier’s response nor for any expense for materials or services not funded on this subcontract.

2. PREPARATION OF PROPOSALS

Volume I must contain the following information, but not contain any pricing information. All pricing information shall be submitted in Volume II – Business Proposal. Proposals will be evaluated based on key evaluation factors there under.

Volume I – Technical Proposal (50 page maximum)

Cover Sheet

The cover sheet should include:

- Project Title: LCLSII-HE Mirror Benders, RFP 364022(GN)
- Volume I - Technical Proposal
- Date of submission
- Subcontractor Name
- Contact information

Technical Factors

Factor 1. Ability to meet technical requirements. The Offeror shall submit a proposal package that demonstrates the Offeror's ability to meet the dimensional requirements and technical specifications set out in the engineering drawings, as referenced in Statement of Work LCLSII-HE-1.4-SW-1121.

Factor 2: Quality Assurance

The Offeror shall submit proof that they and all lower tier subcontractors have a Quality Assurance (QA) program with the ability to meet all the quality control requirements in SoW Appendix A.

Factor 3: Past Performance. The Offeror shall provide documentation demonstrating relevant past performance in meeting similar technical requirements. Acceptable documentation may include photographs, drawings, or reports, list of repeated customers is recommended.

Factor 4: Major Milestones and Delivery Date. The Offeror shall submit a successful completion and delivery schedule in accordance with the milestones identified in the Statement of Work (SoW), Section 8. The Offeror shall provide a detailed schedule including a breakdown of work, manufacturing, inspections, and other key activities.

Volume II – Business Proposal

Cover Sheet

The cover sheet should include:

- Project Title: LCLSII-HE Mirror Benders, RFP 364022(GN)
 - Volume II - Business Proposal
 - Date of submission
 - Subcontractor name
 - Contact information
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Business Factors

Clearly stamp all company financial documents as “*Business Sensitive*,” if applicable, on any included documents.

Factor 1. Price

Submit the RFP Section B- Supplies or Services or Price with firm fixed prices for each item.

- Provide justification of the cost proposal that shows that price is fair and reasonable by submitting either one of the following:
 - Published price list or
 - Price certification letter (Offeror Letterhead) with redacted invoices indicating that the price provided are in each case equal or lower than the list price used globally for the same or similar items quoted to its valuable and favorable customers.

Factor 2. Financial

The Offeror shall include a current Dun and Bradstreet report dated no more than six (6) months from the proposal submission date OR Financial Statements of your audited or reviewed financial statements for the current and 2 previous years. The statements must be prepared in accordance with the standards of the American Institute of Certified Public Accountants and be prepared by an independent certified public accountant registered and licensed under the laws of any state. Balance sheets, income statements, supporting schedules and notes, and the opinion of the independent auditor must accompany the financial statement.

Factor 3. Contractual Documents and Terms and Conditions Acceptance and/or Exceptions

The Offeror’s proposal must communicate acceptance to SLAC Terms and Conditions, as indicated in the solicitation, including all attachments, and documents incorporated by reference. This includes all SLAC Terms and Conditions, Technical Specifications, Drawings, Statement of Work, and the requirements within the forms listed below (if applicable):

- a. Written acceptance of SLAC Terms and Conditions
- b. Submit RFP Section A (completed form), acknowledgement of issued addendums
- c. Section K – Offerors are to fill out, sign and return with your proposal the attached
 - International Representations and Certifications Supplement OR
 - Representation and Certifications Supplement
 - Buy American Act Certification

Requested exceptions to any of the solicitation documents must be communicated at the time of the proposal submission. Note that any and all exceptions to SLAC Terms and Conditions will require SLAC Legal approval. The Offeror shall provide its rationale or an explanation for any exceptions requested.

3. METHOD OF TRANSMISSION/ORGANIZATION/NUMBER OF COPIES/PAGE LIMITS:

Proposals shall be submitted via e-mail as PDF documents. The Offeror shall ensure the Business Proposal shall be a separate document than the Technical Proposal. The two (2) proposals shall not be combined. The Offeror shall prepare the proposal as set forth in the Proposal Organization Table. The titles and contents of the volumes shall be as defined in this table, all of which shall be within the required page limits and with the number of copies as

specified. The contents of each proposal volume are described in the ITO paragraph as noted in the table below.

Proposal Organization Table:

Volume	ITO Section	Volume Title	Copies	Page Limit
I	2	Technical Proposal	1	None
II	2	Business Proposal	1	None

4. LATE PROPOSALS AND MODIFICATIONS:

Proposals and Modifications thereof received at the office designated in the Request for Proposals after the due date and time is “late” and will not be considered unless they are received before award is made.

5. WITHDRAWALS OF PROPOSALS

Proposals may be withdrawn by email, addressed as instructed for the proposal, and received from the Offerors prior to award.

6. AMENDMENT

The right is reserved, as the interests of SLAC may require, to revise or amend the solicitation documents and drawings prior to the due date set for submission of proposals. Such revisions and amendments, if any, will be announced on an “Amendment of Solicitation/Subcontract Modification” form. Copies of such amendment as may be issued will be furnished to all prospective Offerors. If the revisions and amendments are of a nature which requires material changes in quantities or proposal prices or both, the date set for submission of proposals may be postponed by such number of days, as in the opinion of SLAC will enable the Offerors to develop their proposals. In such case, the Amendment of Solicitation/Subcontract Modification form will include an announcement of the new due date for receipt of proposals.

7. EXPLANATION TO OFFERORS

Any explanation desired by an Offeror regarding the meaning or interpretation of the Request for Proposal, drawings, specifications, etc., must be requested in writing and with sufficient time allowed for a reply to reach the Offeror before the due date for submission of proposals. Oral clarification of requirements or instructions provided by SLAC before the award of the Subcontract will not be binding. Questions containing Offeror’s non-proprietary information and corresponding clarifications will be shared with all Offerors.

8. TAXES

Attention of Offerors and their prospective Sub-subcontractors is directed to the Article titled “Federal, State and Local Taxes” of the General Terms and Conditions and to the California State Board of Equalization Regulations relating to sales of machinery and equipment for delivery under construction contracts with the United States government. However, responsibility for determination of the applicability of California State Board of Equalization Regulations shall rest solely with the Offeror, and no representation or guarantee either expressed or implied is made by the Government or SLAC hereunder as to the application thereof. SLAC will not reimburse Offeror for taxes as a separate line item.

9. SPECIFIED PRODUCT AVAILABILITY

Where the Technical Specifications, Technical Evaluation Checklist, or Drawings list a specific product, the Offerors may assume that the product is commercially available; however, availability within the required performance period may require payment, by the successful Subcontractor at no additional cost to SLAC, of premiums for expediting production or shipment. The Offerors are cautioned to confirm not only product prices, but costs associated with timely acquisition of the product as required to meet performance period requirements. The Offerors are required to notify SLAC Sr. Subcontracts Administrator prior to the proposal due date of any obvious product unavailability.

10. SPECIFIED PRODUCT OR METHOD COMPATIBILITY

Where the Technical Specifications, Technical Evaluation Checklist, or Drawings list a specific product or method, the Offerors may assume that the product or method is compatible with other requirements of the Subcontract. The Offerors are required to notify SLAC Sr. Subcontracts Administrator prior to the date set for receipt of proposals of any obvious incompatibility between a specified product or method and other requirements of the Subcontract.

11. EXCEPTIONS TO SLAC'S STANDARD TERMS AND CONDITIONS, PROVISIONS, AND/OR CLAUSES

Offeror must identify any exceptions to SLAC terms and conditions or exceptions to any other element of the requirements that are a part of this RFP, with their proposal. SLAC will not entertain any exceptions not identified in the proposal submission. Exceptions taken may be cause for rejection of a proposal. Inclusion of any assumptions, clarifications, exclusions, or conditions may be cause for rejection of the proposal as non-responsive.
